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August 17, 2017

Via Email and FedEx

Ms. Rachel Dickon, Secretary

FEDERAL MARITIME COMMISSION

800 N. Capitol Street N.W., Room 1046

Washington, DC 20573

**RE: Complainant's Motion for Enlargement of Time to File
Exceptions Pursuant to Rules 102 & 228**

D.F. Young, Inc. vs. NYK Line (North America), Inc.

Docket No.: 16-02

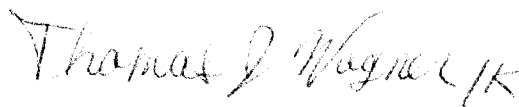
Our File No.: 9004-2695

Dear Ms. Dickon:

Enclosed are an original and five (5) copies of Complainant's Motion to Enlarge Time to File Exceptions Pursuant to Rules 102 & 228.

Thank you for your time and consideration.

Respectfully submitted,



THOMAS J. WAGNER

TJW/kpa
Enclosures

cc: Paul Keane, Esq. (via email)
Joseph De May, Jr., Esq. (via email)

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PLEASE REPLY TO:
PHILADELPHIA OFFICE

**BEFORE THE
FEDERAL MARITIME COMMISSION
800 North Capitol Street, N.W.
Washington, D.C.**

D.F. YOUNG, INC.,	:	
Complainant,	:	
v.	:	
NYK LINE (NORTH AMERICA), INC.,	:	DOCKET NO.: 16-02
Respondent.	:	

ORDER

AND NOW, this _____ day of _____, 2017, upon consideration of the Complainant's uncontested Motion to Enlarge Time to File Exceptions Pursuant to Rules 102 & 228, it is hereby ORDERED that the Motion is hereby GRANTED.

Erin M. Wirth
Administrative law Judge

**BEFORE THE
FEDERAL MARITIME COMMISSION
800 North Capitol Street, N.W.
Washington, D.C.**

D.F. YOUNG, INC.,	:	
	:	
Complainant,	:	
v.	:	
	:	
NYK LINE (NORTH AMERICA), INC.,	:	DOCKET NO.: 16-02
	:	
Respondent.	:	
	:	

**COMPLAINANT D.F. YOUNG, INC.'S MOTION FOR ENLARGEMENT OF TIME
TO FILE DOCUMENTS PURSUANT TO RULES 102 & 228**

Complainant D.F. Young, Inc. ("Complainant") pursuant to Rules 102 & 228, requests an additional fourteen (14) days in which to file exceptions to Administrative Law Judge Wirth's August 1, 2017 Initial Decision, and in support thereof, represents:

1. The undersigned counsel represents Complainant D.F. Young, Inc. in this matter.
2. Complainant's exceptions to Administrative Law Judge Wirth's August 2017 Initial Decision are due to be filed on August 23, 2017.
3. The undersigned counsel is currently responding to the death of a close family member which was discovered on the afternoon of August 15, 2017. As a result of that individual's passing, counsel and Complainant request an additional fourteen (14) days in which to file exceptions to Judge Wirth's August 1, 2017 Initial Decision.
4. The undersigned counsel would have filed this request at least seven (7) days before the scheduled filing date as required by Rule 228, but was occupied with related family matters until this morning.

5. I have consulted with counsel for Respondent on the morning of August 17, 2017 and he has consented to this request for additional time to accommodate counsel's loss.

6. The undersigned counsel submits that the death of a close blood relative, eight (8) days before a filing is good cause to extend the filing date pursuant to Rules 102 & 228. The undersigned counsel seeks fourteen (14) days. Respondent consents to this request for relief.

7. The undersigned counsel for Complainant submits that the sudden passing of a close blood relative is good cause upon which to base this extension and that this specific situation presents “reasonable grounds” to excuse the Rule 102 seven (7) day period required to seek enlargement of time.

8. The undersigned counsel respectfully submits that the passing of his close blood relative on August 15, 2017 is also an exceptional circumstance and that justice suggests that the Commission provide an additional fourteen (14) days in which to file exceptions pursuant to Rules 102 and 228.

9. The undersigned counsel for Complainant respectfully submits that Respondent be granted the same period of time to reply to complainant’s exceptions.

WHEREFORE, Complainant D.F. Young, Inc., respectfully request that the Commission grant this Motion for Enlargement of time and extend the filing deadline for Complainant D.F. Young's exceptions and respondent NYK Line (North America) Inc.'s opposition or reply, if any, by an additional fourteen (14) days.

A Proposed Order is attached.

Respectfully submitted,

LAW OFFICES OF THOMAS J. WAGNER, LLC

By: /s/ Thomas J. Wagner, Esq.
Thomas J. Wagner, Esquire
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Tel.: 215.790.0761
PA Bar ID No. 52876
Attorney for Complainant, D. F. Young, Inc.

Date: August 17, 2017

**BEFORE THE
FEDERAL MARITIME COMMISSION
800 North Capitol Street, N.W.
Washington, D.C.**

D.F. YOUNG, INC.,	:	
Complainant,	:	
v.	:	
NYK LINE (NORTH AMERICA), INC.,	:	DOCKET NO.: 16-02
Respondent.	:	

CERTIFICATE OF SERVICE

The undersigned certifies that on the date noted below he served a true and correct copy of the foregoing Complainant D.F. Young, Inc.'s Motion for Enlargement of Time to File Documents Pursuant to Rules 102 & 228 via U.S. First Class Mail and email on the following at the addresses provided:

Paul M. Keane
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Attorneys for Respondent, NYK Line (North America), Inc.

Respectfully submitted,

LAW OFFICES OF THOMAS J. WAGNER, LLC

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PA Bar ID No. 52876
Attorney for Complainant, D. F. Young, Inc.

Date: August 17, 2017